

RESPONDENT’S MOTION FOR SOLE LEGAL CUSTODY

IN THE CIRCUIT COURT OF BOONE COUNTY, MISSOURI

In re the Marriage of:

AMBER MCINTOSH,
Petitioner,

-vs-

SHINGAI SAMUDZI,
Respondent.

Case No.: 25BA-FC01732

Division No.: 8

COMES NOW Respondent, Shingai R. Samudzi (“Father”), pro se, and moves this Court for sole legal custody of the minor children with joint physical custody. Father’s Proposed Parenting Plan is filed concurrently. In support, Father states:

I. RELIEF REQUESTED

1. Father requests sole legal custody with an obligation to confer with Mother before major decisions and to notify her of all decisions within 24 hours in writing. Father requests joint physical custody on the existing 50/50 alternating-week schedule. Father does not seek to limit Mother’s parenting time.
2. Joint legal custody requires honest information exchange and good-faith cooperation. §452.375.1(1)(a) RSMo. As documented in Father’s Sworn Affidavit filed in this action and summarized below, Mother has demonstrated through a consistent pattern of conduct that she is unable to provide either.

II. MOTHER CANNOT PARTICIPATE IN JOINT DECISION-MAKING IN GOOD FAITH

- 3. False statements to this Court.** Mother's Form 14 financial disclosure, filed October 16, 2025, reported \$0.00 per month in education expenses while both children were enrolled in private school at approximately \$30,000 per year. The same disclosure claimed sole ownership of jointly-owned property in Newton, Kansas, and omitted income from commercial online content production. Mother's attorney reviewed Father's evidence fourteen days before filing this disclosure.
- 4. Misrepresentation of the parenting plan.** On February 4, 2026, Mother transmitted a proposed parenting plan stating it contained "no changes" to the parties' existing agreement. The document contained no fewer than ten substantive modifications uniformly benefiting Mother, including: designating Mother's address as the children's school mailing address; eliminating makeup parenting time; restricting summer vacation to one week per parent; creating child support and college expense obligations; raising the first-right-of-care threshold from 10 to 24 hours; and replacing written agreements with oral agreements as sufficient to supersede the plan. (Exhibit A: Side-by-Side Comparison.)
- 5. Concealment of child endangerment.** In October 2024, Father discovered approximately 770 files of sexually explicit content on the six-year-old's iPad without parental controls. Mother had knowledge of the content and failed to disclose, remediate, or protect the child's access. When reported to police, evidence was destroyed rather than preserved. Father has filed federal

complaints arising from these events (DOJ Case No. 669533-FFD; FBI IC3; IRS Form 3949-A). Details are set forth in Father's Sworn Affidavit.

6. **Unilateral action in violation of agreements.** Mother agreed in writing to pay her share of tuition and breached within two weeks. Mother closed joint bank accounts at midnight on November 7, 2025, without notice. Mother attempted a HELOC extraction against marital property without Father's involvement. Each action was unilateral and contrary to existing agreements.

7. **Relocation under false pretenses.** The family's June 2024 relocation from California to Missouri was represented to Father as being for Mother's mental health. Mother's journal entry of April 1, 2024 documents that the actual motivation was proximity to the individual with whom she was conducting an extramarital affair. A parent who relocated the family based on a false representation cannot be trusted with joint decision-making authority regarding the children's welfare.

III. THREE INDEPENDENT SOURCES CONFIRM THE SAME DEFICITS

8. **Clinical.** A CPT-II evaluation by Roger Freed, M.D. (July 6, 2023) documented: commission errors at the 99th percentile (impulsive); omission errors at the 98th percentile (inattentive); perseverative responses at the 95th percentile (impulsive); vigilance classified as "Poor" on both measures. Overall assessment: poor performance suggesting clinical ADHD classification. Mother has not pursued recommended treatment. (Exhibit B: CPT-II Profile Report.)

9. **Professional.** A formal Performance Improvement Plan issued by Mother's employer Godfrey Dadich & Partners on January 25, 2024 identified deficiencies in: (a) data accuracy and tracking; (b) communication effectiveness; and (c) follow-through on commitments and deadlines. Mother's employment was subsequently terminated. This was her second termination within four years. (Exhibit C: Performance Improvement Plan.)

10. **Documented experience.** The clinical impulsivity manifests as midnight account closures and forwarding sensitive legal evidence to third parties. The clinical inattention manifests as \$0 education expenses on a disclosure filed while the children attend private school, and ten undisclosed modifications presented as "no changes." The professional deficiencies in follow-through manifest as the tuition breach two weeks after written agreement. The same person appears in the clinical data, the professional evaluation, and the co-parenting record.

IV. STATUTORY FACTORS SUPPORT SOLE LEGAL CUSTODY

11. **Mental and physical health (§452.375.2(5)).** Dr. Freed's evaluation documents clinically significant attention and impulse-control deficits. These deficits are unmanaged. They directly correlate with the functional failures documented in paragraphs 3–7.

12. **Cooperation (§452.375.2(1)).** Every documented information exchange between the parties has contained materially false statements by Mother: the financial disclosure, the "no changes" parenting plan, the relocation rationale, and the denial of commercial content production.

13. **Which parent allows contact (§452.375.2(6)).** Father proposes 50/50 physical custody and does not seek to limit Mother's time. Mother's undisclosed plan modifications were designed to establish her as de facto primary parent.

14. **Child welfare (§452.375.2(4), (13)).** The children's treating psychologist has independently observed differential behavioral presentation between households: calmer and more regulated in Father's care, behavioral regression and physical aggression in Mother's care. The older child's device contained 770 files of explicit content without parental controls.

V. FATHER'S PROPOSAL

15. Sole legal custody with obligation to confer with Mother and notify her of all major decisions within 24 hours in writing. Joint physical custody, 50/50 alternating weeks. Up to eight weeks of uninterrupted summer parenting time for Father for international travel to southern Africa, where Father's business is headquartered and his extended family resides, with equivalent makeup time for Mother. Unilateral spending decisions borne by the deciding parent; joint spending requires advance written agreement. Father's Proposed Parenting Plan is filed concurrently.

VI. CONCLUSION

For the foregoing reasons, Father respectfully requests that this Court award him sole legal custody, enter a parenting plan consistent with Father's Proposed Parenting Plan, and grant such other relief as the Court deems just.

Respectfully submitted,

Shingai R. Samudzi, Pro Se

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CERTIFICATE OF SERVICE

I certify that on _____, 2026, a true and correct copy of this Motion and Father's Proposed Parenting Plan was served upon Petitioner's counsel, Tana Benner, at [address], by [method of service].

Shingai R. Samudzi, Pro Se